

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV2025-0929

Hearing Date: May 19, 2026 Department Eleven 9:00 a.m.

Plaintiff's motion to file second amended complaint

Plaintiff Nadir Malik's motion to file second amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.)

Plaintiff's moving and supporting papers were filed with the Court and electronically served on defendant Flagstar Bank, N.A. on April 28, 2026. (Plaintiff's Proof of Service, pp. 1-2 [filed 4/28/26].) All moving and supporting papers must be filed with the Court and a copy served on each party at least sixteen court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The period of notice is extended by two court days for all moving and supporting papers served electronically and therefore, plaintiff's motion was untimely served on defendant. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B).) The Court finds that the untimely service of plaintiff's moving and supporting papers on defendant prejudiced defendant's ability to prepare a substantive response. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(b); Cal. Rules of Court, rule 3.1300; *Rancho Mirage Country Club Homeowners Ass'n v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"]; Defendant's Opp., pp. 7-8.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant's motion for judgment on the pleadings

On the Court's own motion, defendant's motion for judgment on the pleadings is **CONTINUED** to **June 18, 2026**, at 9:00 a.m. in Department Eleven. If plaintiff does not timely file and serve the motion to file a second amended complaint, the Court will rule on defendant's motion for judgment on the pleadings.